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Stella Maris (January 31, 1997)

APOSTOLIC LETTER "MOTU PROPRIO"

STELLA MARIS ON THE MARITIME APOSTOLATE

"Stella Maris " ("Star of the Sea") has long been the favourite title by which people of the sea have called on her in whose protection they have always trusted: the Blessed Virgin Mary. Her son, Jesus Christ, accompanied his disciples in their vessels (1), helped them in their work and calmed the storms (2). And so the Church accompanies seafarers, caring for the special spiritual needs of those who for various reasons live and work in the maritime world.

In order to meet the requirements of special pastoral assistance for people involved in commercial shipping and in fishing - as well as their families, port personnel and all who travel by sea - we establish what follows, updating the norms issued earlier in this century and having heard the opinion of our Brother, the President of the Pontifical Council for the Pastoral Care of Migrants and of Itinerant People.

SECTION 1

The Work of the Maritime Apostolate

I . Although it does not constitute an autonomous canonical entity with its own juridical personality, the Work of the Maritime Apostolate is the organisation concerned with the specific pastoral care of the people of the sea; it seeks to support the work of the faithful who are called to witness to their Christian life in this sphere.

SECTION 2

People of the Sea

II . 1. In this document, the terms used are defined as follows: a) Seafarers are those actually on board merchant ships or fishing vessels, and all who for whatever reason have undertaken a voyage by ship; b) Maritime personnel include 1. seafarers ; 2. those whose work normally involves being on board a ship; 3. those who work on oil rigs and platforms; 4. pensioners retired from the aforesaid jobs; 5. students of nautical institutes; 6. port workers; c) People of the Sea includes 1. seafarers and maritime personnel ; 2. the spouses and children who are still minors of seafarers and maritime people as well as those who share a home with them even if they are not actually seafarers (e.g. pensioners); 3. those who work regularly in the Maritime Apostolate.

2. The chaplains and the authorities of the Work of the Maritime Apostolate will strive to see that the people of the sea are provided abundantly with whatever is required to lead holy lives; they will also recognise and promote the mission which all the faithful - and in particular the laity - are called to exercise in the Church and in the maritime world in accordance with their specific state.

III. Mindful of the special circumstances of the people of the sea and taking into account the privileges which over the years the Apostolic See has granted this people, the following is established: 1. Maritime personnel can fulfill their Easter Duty regarding Holy Communion at any time during the year, having first received appropriate instruction or catechesis; 2. Seafarers are not bound by the laws of fast and abstinence prescribed in can. 1251; they are advised, however, when taking advantage of this dispensation, to undertake a comparable work of piety in place of abstinence, and, as far as possible, to observe both laws on Good Friday in memory of the sufferings and death of Jesus Christ; 3. Seafarers, who have properly confessed and received Communion and who visit with religious piety a legitimately erected oratory on board and recite there the Lord's Prayer and the Creed for the intentions of the Supreme Pontiff, can gain a plenary indulgence on the titular feast of the oratory and also on 2 August; 4. These same faithful, under the same conditions, can gain one plenary indulgence, applicable only to the departed, if they visit with religious piety the

aforementioned oratory on 2 November and recite there the Lord's Prayer and the Creed for the intentions of the Supreme Pontiff; 5. The indulgences mentioned in Nn 3 and 4 can be gained, under the same conditions, by people of the sea in chapels or oratories of places where the Maritime Apostolate is active. On vessels which have no oratory, seafarers can gain these indulgences by reciting the prescribed prayers before a sacred image.

SECTION 3

The Chaplain of the Work of the Maritime Apostolate

IV. 1. The Chaplain of the Work of the Maritime Apostolate is the priest appointed in conformity with art. XII, par. 2; the authority who appoints him also confers on him the office described in can. 564 of the Code of Canon Law, to attend to the pastoral care of the people of the sea. As far as possible, appointments to this ministry should be characterised by stability.

2. The chaplain of the Work of the Maritime Apostolate should be be distinguished by integrity of life, zeal, prudence and a knowledge of the maritime world. He should be good at languages and enjoy good health.

3. In order that the chaplain of the Work of the Maritime Apostolate be fitted to carry out all aspects of this particular ministry, he should be properly instructed and carefully prepared before being entrusted with this special pastoral work.

4. The chaplain of the Work of the Maritime Apostolate must identify, among local and transient maritime personnel, those who display leadership qualities and help them to deepen their Christian faith, their commitment to Christ and their aptitude for creating and guiding a Christian community on board.

5. The chaplain of the Work of the Maritime Apostolate must identify among maritime personnel those who have a special devotion to the Blessed Sacrament and train them so that they can be appointed, by the competent authority, as extraordinary ministers of the Eucharist and be able to exercise this ministry with dignity, especially on board ships.

6. The chaplain of the Work of the Maritime Apostolate should provide pastoral assistance in Stella Maris centres and in other hospitality centres for maritime personnel.

V. 1. The chaplain of the Work of the Maritime Apostolate, by virtue of his office, can perform for the people of the sea all acts pertaining to the care of souls, with the exception of matrimonial matters.

2. The faculties of the chaplain of the Work of the Maritime Apostolate are cumulative with those of the parish priest of the territory in which they are actually exercised. For this reason, the chaplain must carry out his pastoral ministry in fraternal understanding with the parish priest of the territory and consult with him.

3. The chaplain of the Work of the Maritime Apostolate must take care to keep a register of those baptised, confirmed and deceased. At the end of the year he must send a report of what has been done to the National Director, described in art. IX, par. 2, together with an authentic copy of the registers, unless the acts were recorded in the registers of the port parish.

VI. All the chaplains of the Work of the Maritime Apostolate, by virtue of their office, have the following special faculties: a) to celebrate Mass twice on weekdays, if there is a just cause, and three times on Sundays and Feast Days, whenever genuine pastoral necessity requires this; b) to celebrate Mass habitually outside a place of worship, if there is a just cause, observing the prescriptions of can. 932 of the Code of Canon Law; c) to celebrate a second Mass in the evening of Holy Thursday, the Memorial of the Lord's Supper, in churches and oratories, if this is required for pastoral reasons; and also in the morning in a case of genuine necessity and only for the faithful who cannot attend an evening Mass.

VII. 1. The chaplain of the Work of the Maritime Apostolate who is appointed by the competent authority to exercise his ministry on board a ship during a voyage is obliged to offer spiritual assistance to all who are making the voyage, whether by sea, lake or river, from the start of the trip until its conclusion.

2. Can. 566 of the Code of Canon Law remaining in force, the chaplain mentioned in the preceding paragraph has the special faculty of administering the sacrament of Confirmation to any of the faithful during the voyage, as long as there is no Bishop on board who is in proper communion with the Apostolic See and all the canonical presciptions have been fully observed.

3. In order to assist validly and licitly at a marriage during the voyage, the chaplain of the Work of the Maritime Apostolate must be delegated by the Ordinary or by the parish priest of the place where one or other of the contracting parties has a domicile or quasi-domicile or has been staying for a least one month, or, if they are transients, by the parish priest of the port parish where they boarded the ship. The chaplain is obliged to report the details of the celebration to the one who delegated him, for recording in the marriage register.

VIII. 1. The same authority competent to appoint chaplains can appoint a deacon, a lay faithful or a religious to be a Co-Worker of the chaplain of the Work of the Maritime Apostolate. This Co- Worker assists the chaplain and, in accordance with the law, subsitutes for the chaplain in matters which do not require the ministerial priesthood.

2. Those so appointed to be Co-Workers in the Work of the Maritime Apostolate must be distinguished by integrity of life, prudence and a knowledge of the faith. They should be suitably instructed and carefully trained before this task is entrusted to them.

SECTION 4

The direction of the Work of the Maritime Apostolate

IX. 1. In each Episcopal Conference with maritime territory there should be a Bishop-Promoter whose responsibility it is to foster the Work of the Maritime Apostolate. The Episcopal Conference itself will appoint the Bishop-Promoter, preferably from among the bishops of dioceses with ports, indicating the term of his appointment and communicating the details of the appointment to the Pontifical Council for the Pastoral Care of Migrants and Itinerant People.

2. The Bishop-Promoter will choose a suitable priest and present his name to the Episcopal Conference which will then appoint him, in writing and for a determined period of time, as National Director of the Work of the Maritime Apostolate, with the duties prescribed in art. XI. The Pontifical Council for the Pastoral Care of Migrants and Itinerant People is to be informed of his name and the duration of his appointment. The National Director may be assisted by a pastoral worker.

X. The tasks of the Bishop Promoter are: 1. to give directives to the National Director, to keep in touch attentively with his activities and to give suggestions and advice, as appropriate, so that he can properly carry out the duties confided to him; 2. to request at the appointed times and whenever it seems appropriate, a Report on pastoral activities for maritime personnel and the work done by the National Director; 3. to transmit the Report, mentioned in no. 2, to the Episcopal Conference, together with his own comments; and to encourage interest in this Apostolate among his fellow bishops; 4. to maintain contact with the Pontifical Council for the Pastoral Care of Migrants and Itinerant People regarding all that concerns the Maritime Apostolate, and to transmit to the National Director communications he has received; 5. to present to the Pontifical Council for the Pastoral Care of Migrants and People on the Move an annual Report on the situation of the Work of the Maritime Apostolate in his territory.

XI. The principal duties of the National Director are: 1. to maintain relations with the bishops of the country in all matters affecting the spiritual good of maritime people; 2. to present to the Bishop Promoter, at least once a year, a Report on the "status animarum" and on pastoral work for the maritime people of his country: in this report he is to explain both the activities which went well and those which were, perhaps, less successful, as well as any corrective action taken to avoid losses and, finally, whatever seems useful for the spread of the Work of the Maritime Apostolate; 3. to promote specific training programmes for chaplains; 4. to direct chaplains of the Work of Maritime Apostolate without prejudice to the rights of the local Ordinary; 5. to make sure that chaplains diligently fulfill their duties and observe the prescriptions of the Holy See and the local Ordinary; 6. to arrange, with the consent of the Bishop Promoter and according to the circumstances of the time, meetings and spiritual exercises for all the chaplains in the country or for chaplains and other faithful who are involved in the Work of the Maritime Apostolate; 7. to be particularly concerned to encourage and develop the Apostolate of the laity, fostering their active participation while bearing in mind the diversity of their talents;

8. to establish and maintain regular contact with institutions and aid organisations - both Catholic and non-Catholic - and with non-governmental organisations (NGOs) which pursue goals akin to those of the Work of the Maritime Apostolate; 9. to make frequent visits to places where the Work of the Maritime Apostolate is active; 10. to send authentic copies, prepared by himself or by the chaplains, of Baptism, Confirmation and Death Registers to the appropriate diocesan offices; 11. to inform, as soon as possible, the parish priest where parties concerned have domicile, of the data that must be recorded in the parish registers; 12. to establish relations with the Work of the Maritime Apostolate in neighbouring countries, and to represent his own country at regional or continental level; 13. to maintain regular contact with the Regional Coordinator mentioned in art. XIII, 1, 6.

XII. 1. It is the right and duty of the Bishop of a diocese to show zealous concern for and to offer pastoral assistance to all maritime personnel who reside, even for a short time, within his jurisdiction.

2. The Bishop of a diocese is responsible for: 1) determining the most suitable forms of pastoral care for maritime personnel; 2) appointing, in agreement with the National Director, chaplains for the Maritime Apostolate in his diocese, and granting them the necessary mandate; 3) granting permission for the erection of an oratory on a ship listed in the public registry of a port located within the territory of his juirisdiction.

XIII. 1. The Pontifical Council for the Pastoral Care of Migrants and Itinerant People , which is responsible for the overall direction of the Work of the Maritime Apostolate, has these principal duties: 1) to publish instructions, in accordance with can. 34 of the Code of Canon Law, and to give guidelines and exhortations concerning pastoral ministry among the people of the sea; 2) to ensure prudently that this ministry is carried out in accordance with the law and in a dignified and fruitful manner; 3) to exercise, with respect to other associations encompassed within the Work of the Maritime Apostolate, those functions proper to the Holy See regarding associations; 4) to offer assistance from the Pontifical Council to all who are involved in this apostolic work by encouraging and supporting them, and also by seeing to the correction of possible abuses; 5) to promote an ecumenical spirit in the maritime world, at the same time seeing that this is done in faithful harmony with the teaching and discipline of the Church; 6) to appoint a Coordinator for a region encompassing several Episcopal Conferences, at the suggestion of the Bishop promoters concerned, and to specify the functions of such a Coordinator.

2. So that the pastoral care of people of the sea may be better and more effectively organised, the Pontifical Council for the Pastoral Care of Migrants and Itinerant People should encourage and foster cooperation and reciprocal coordination of projects among Episcopal Conferences and local Ordinaries. This same Council will establish relations with institutes of consecrated life and with associations and organisations that can cooperate at the international level with the Work of the Maritime Apostolate.

We order all these things to have lasting effect, all things to the contrary notwithstanding.

Given in Rome at St Peter's on the thirty-first day of January, nineteen hundred and ninety-seven, the nineteenth year of our Pontificate.

JOHN PAUL II

1. Cf Mt 8:23-27; Mk 4:35-41; Lk 8:22-25

2. Cf Mt 14:22-33; Mk 6:47-52; Jn 6:16-21

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